

March 23, 2026
Dept. 9
Probate Tentative Rulings

4.	25PR0294	IN THE MATTER OF RALPH AND MARLIE EMIG IRREVOCABLE TRUST
Trust Petition		

Petitioner alleges a breach of trust on the part of the trustee of the above-referenced trust ("Trust"). The Petition states that there has been no accounting since the last settlor's death in February, 2024 death notwithstanding Petitioner's repeated inquiries to the trustee's counsel between October, 2024 and June, 2025. See Petition Exhibits 1-5.

Petitioner alleges violations of Probate Code §§ 16000, 16002, 16004 in failing to provide an accounting, withholding information from the beneficiary, mismanagement of Trust assets including self-dealing and commingling Trust property with the trustee's property; improper distributions or failure to make distributions and failure to act with good faith and impartiality towards the beneficiary.

Petitioner alleges violations of Probate Code §§16060, 16062 in failing to provide annual accounting of Trust assets.

Petitioner alleges that the trustee is living in the house that belongs to the Trust and is not paying rent, resulting in a loss of potential income to the Trust from rental or sale of the property.

Petitioner argues that the Trustee should be removed or suspended pursuant to Probate Code §§ 15642 and 17200 to protect Trust assets and Petitioner as beneficiary from further loss.

At the previous hearing on December 15, 2025, the judge assigned to Department Nine disclosed a conflict of interest and recused himself from hearing the matter, which was continued.

TENTATIVE RULING #4: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 23, 2026, IN DEPARTMENT NINE.